Indian Constitution

Module 1

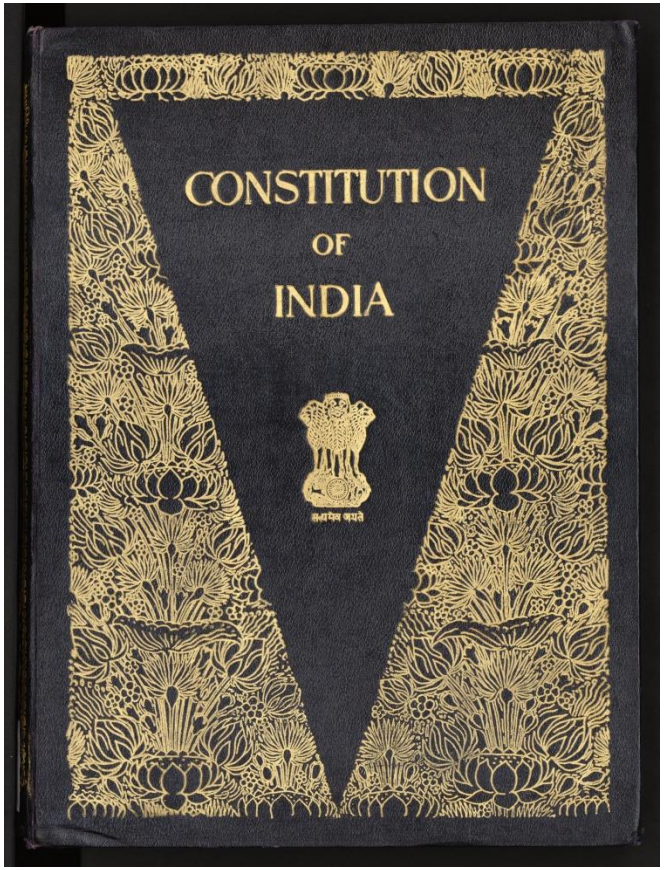
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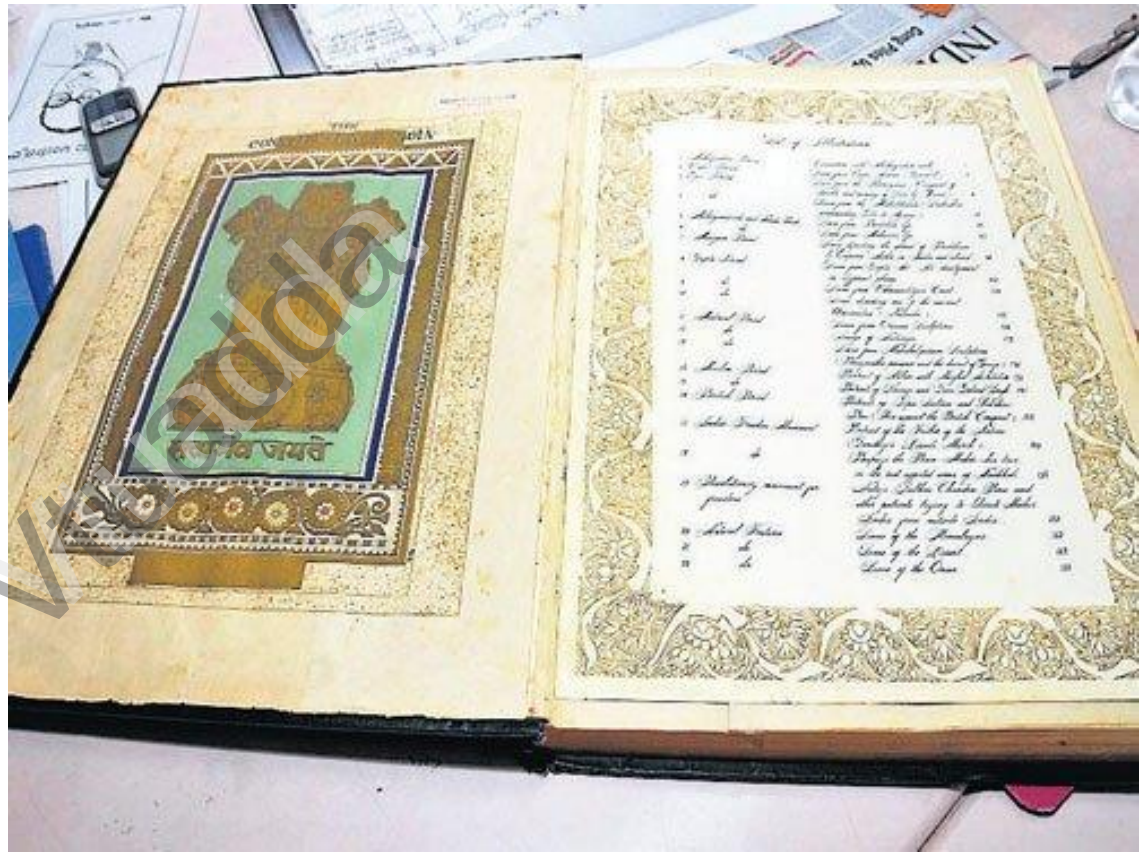
Presenting
by
Dr. Karthik Kumar M B

SYLLABUS

- Necessity of the Constitution
- Societies before and after the constitution adoption
- Introduction to the Indian Constitution
- Making of the Constitution
- Role of the constituent Assembly

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Indian Constitution

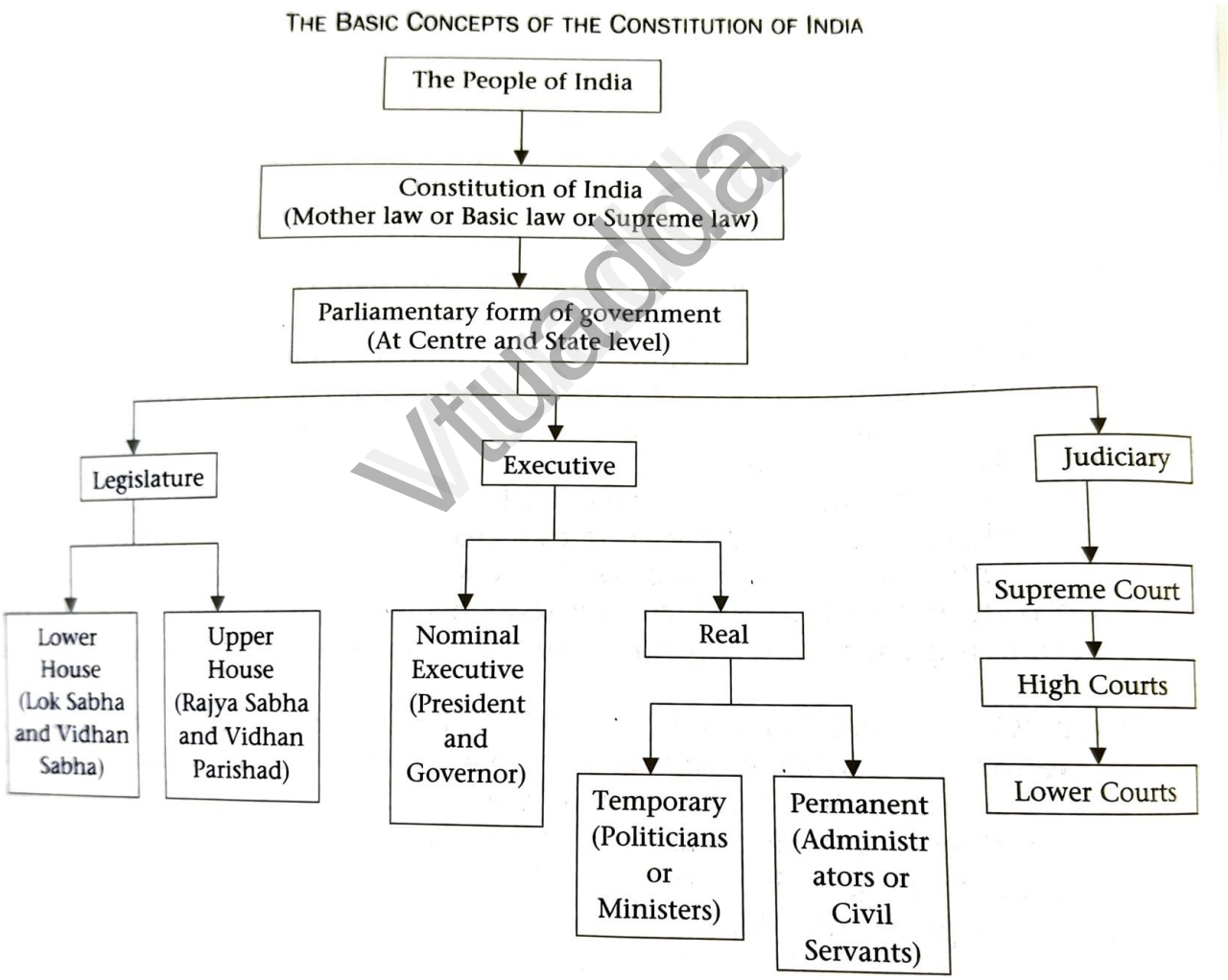
- The word Constitution originate from Latin word called ***constituere***, which means **'to establish'** or **'to construct'** or **'to form'.**

- The Constitution is the fundamental law/supreme law of a nation that outlines the powers and limitations of the government, and the rights and duties of citizens.

- It is an essential document that sets the framework for the governance of a country, and serves as a safeguard against tyranny and abuse of power

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- It was adopted by the Constituent Assembly of India on **26 November 1949** and became effective on **26 January 1950**



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Necessity/Importance of the Constitution

- To **provide a set of basic rules** that allow for minimal coordination amongst members of society.

- To **specify who has the power** to make decisions in a society. It decides how the government will be constituted.

- To **set some limits on** what a **government** can impose on its citizens. These limits are fundamental in the sense that government may never trespass on them.

- To **enable the government to fulfil** the aspirations of a society and create conditions for a just society.

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The Making of the Constitution

- Evolution of the Constitution
- Constituent Assembly

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Constitutional Landmarks and important Provisions

Constitutional Landmarks	Important Provisions
Regulating Act of 1773	• Designated the Governor of Bengal as Governor General of Bengal • First Governor General of Bengal – Lord Warren Hasting • Establishment of Supreme court in Calcutta (1774)
Pitt's India Act of 1784	• Distinguished the commercial and political function • Established Double Government – Board of Control (Political) & Court of Directors (commercial)
Charter Act of 1833	• Designated the Governor General of Bengal as Governor General of India • First Governor General of India – Lord William Bentinck • End of East India Company
Charter Act of 1853	• Created Central Legislative Council (CLC) which functions as mini Parliament • Introduce open competition system to recruit civil servants
Government of India Act of 1858	• Changed the Governor General of India title to 'Viceroy of India' • First Viceroy of India – Lord Canning
Indian Council Act of 1861	• Gave ordinance making power to the Viceroy of India

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Constitutional Landmarks	Important Provisions
Indian Council Act of 1892	• Introduce indirect election • Enlarged function of Legislative Council
Indian Council Act of 1909 (Morley - Minto Reforms)	• It associates Indians with Executive councils of the Viceroy of India
Government of India Act of 1919 (Montagu Chelmsford Reforms)	• Introduced direct election – Provided voting rights based on property, tax or education • Formation of dual system of government – Dyarchy • Introduced Bicameralism at the centre • Established Central Public Service Commission in 1926
Government of India Act of 1935	• Introduced three lists – Federal, state and concurrent subject list • Abolished Dyarchy in the provinces and introduced it at the centre • Gave provincial Autonomy and established responsible government at provinces • Establishment of Reserve Bank of India (RBI)
Indian Independence Act of 1947	• Ended the British rule in India and declared India as Independent and sovereign state • Divided British India and created two independent dominions • Gave option for Indian princely states to join either India or Pakistan or remain independently

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Constituent Assembly

- Constituent Assembly means a group of persons that draft a constitution for a country.

The historical development of the constituent Assembly is as follows,

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- **1934** – **M N Roy** was the **first person to propose** a constituent assembly to frame constitution of India
- **1935** – **Indian National Congress (INC)** officially demanded for the **creation of a constituent Assembly** to the British Government
- **1939** - **C Rajagopalachari** voiced the demand for a constituent assembly

- **1940** – British Govt. **accepted to form a Constituent Assembly** to frame the Constitution of India.

- **1946** - Under the provision of the **Cabinet Mission Plan -1946**, the British Govt. **created the Constituent Assembly** to frame the Constitution of India.

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The **strength** of the Constituent Assembly was to be **389**

- Partially Elected : 296 members (British India)
- Partially Nominated: 93 members (Princely State)

- Formally, the Constitution was made by the Constituent Assembly which had been elected for undivided India. It had its **first sitting on 9 December 1946** and reassembled as **Constituent Assembly for divided India on 14th August 1947**.

- **9th December 1946 – Dr. Sachchidanand Sinha First President** (Temporary) of Constituent Assembly

- **11th December1946**
  - **President**: Dr. Rajendra Prasad
  - **Vice President**: H C Mukherjee
  - **Constitutional Advisor**: Sir. B N Rau

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On **13th December 1946**, the **'Objective Resolution'** was moved by **Jawaharlal Nehru** in the Constituent Assembly and later accepted as the **Preamble to the Constitution** in its modified form

- The Constituent Assembly also act as a **legislative organ** till the first parliament was elected in 1951.

Important functions performed by Constituent Assembly

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- Confirm's India's **membership** in the **Commonwealth of Nations** in May 1949
- It **adopt the National flag** on 22nd July 1947
- It **adopted the National Anthem** and National Song on 24th January 1950
- It **elected Dr. Rajendra Prasad** as the first **President** of India on 24th January 1950

Constituent Assembly took '**2 Year, 11 months and 18 days**' and **11 sessions** to complete the process of writing the constitution of India.

26th Nov. 1949 – The Constitution of India was adopted.

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It contains **a Preamble, 22 Parts, 395 Articles and 8 Schedules** on the day it was adopted.

It came into force on **26th January 1950**

Republic Day – Commencement of the Constitution of India

Drafting Committee

Members:

1. **Dr. B R Ambedkar – Chairman**
2. Alladi Krishnaswamy Iyer
3. Dr. K M Munshi
4. T T Krishnamachari
5. N Madhava Rau
6. N Gopalaswamy Ayyangar
7. Sir Syed Muhammad Saadulla

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Dr B R Ambedkar is recognised as the **Father of the Constitution of India** or **Chief Architect of the Constitution**

The Important Committees of the Constituent Assembly and Their Chairpersons

Chairpersons	Committees
Sardar Vallabhbhai Patel (the 'Iron Man of India' and the first Home Minister)	• Provincial Constitution Committee • Advisory Committee on Fundamental Rights and Minorities
Jawaharlal Nehru (the first Prime Minister of India)	• Union Powers Committee • States Committee • Union Constitution Committee
Dr Rajendra Prasad (the first President of India)	• Rules for Procedure Committee • Steering Committee

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Thank You

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